

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-016
Amendments to Section 18-110 and Section 10-202
of the Chickasaw Nation Code
(Development Budget)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Subsection 18-110.B of the Code of Laws of the Chickasaw Nation makes provisions for a capital improvements plan for tribal facilities and real property, and

WHEREAS, expansion upon that section will simplify the capital improvements process for both the Chickasaw Tribal Legislature and the Chickasaw Nation Executive Department.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Section 18-110 of the Chickasaw Nation Code (deletions are stricken through):

SECTION 18-110

ROUTINE MAINTENANCE.

A.—Normal, routine maintenance and upkeep of all real property shall be done in accordance with the daily and/or special requirements of such property to provide for its protection and security. Such maintenance and upkeep shall be provided in accordance with established procedure by the department or agency of the Executive Department which is charged with such duties, with costs for such services provided for through program costs or other resources for such expenditures; provided, however, that any costs requiring use of tribal funds that are not otherwise budgeted must be approved by the Legislature prior to incurring any such costs.

~~B.—Capital improvements to tribal real property shall be contained in a Capital Improvements Plan, devised by the Governor and submitted to the Legislature on no less frequent basis than annually, with updates as special need or circumstances dictate. The plan shall also include a proposed and projected time frame for completion of any work involved, as well as justification for that work. The Legislature shall act upon a resolution approving or disapproving that Capital Improvements Plan and any subsequent additions or changes to it. An~~

~~cost shall be provided for each improvement and shall be identified as to source of funding.~~
~~Capital improvements funded from tribal resources shall be included in a budget, as devised by the Governor.~~

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Section 10-202 of the Chickasaw Nation Code, all other parts of Section 10-202 to remain the same (additions are shown in red; deletions are stricken through):

“SECTION 10-202 **COMPTROLLER BUDGET DUTIES.**

B. Projects intended to develop tribal real property shall be contained in a Development Budget, devised by the Governor and submitted to the Legislature annually apart and separate from the Consolidated Governmental Budget. The Governor may submit updates as special need or circumstances dictate.

1. The budget shall include a scope of work and projected time frame for completion of any work involved, as well as justification for that work. An estimate of cost shall be provided for each project and shall be identified as to source of funding.

2. When the Legislature shall have approved the Development Budget, the requirements of Section 18-106.B shall be deemed to have been met, and authorization shall be granted for the performance of activities and authorization for extending funds to complete the projects identified in the Development Budget. Completion of a project may not be limited to a single fiscal year; approval of a project includes approval until such time as the project is completed.

3. Total expenditures for any single project may not exceed more than 10% over the budgeted amount of that project; however, should it become apparent that completion of the project shall exceed such amount, the Governor shall submit a revised project budget to the Legislature for approval.

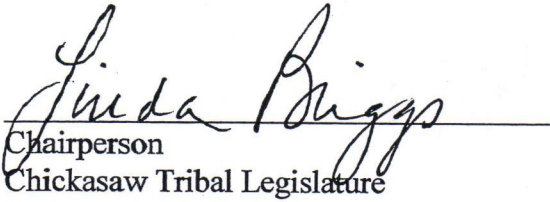
4. A report of all ongoing projects approved in the Development Budget shall be provided to the Legislature by the Governor on a monthly basis. Such report shall include the status of each project, the status of each project budget's expenditures to-date and the balance of each project's allocated expenditure. As a project is completed, it shall be removed from that report; as new projects are added, they shall be included on the report to the Legislature.

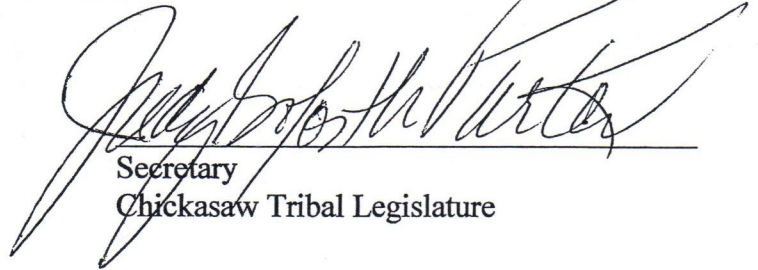
CB. The comptroller shall assist the governor in devising the Consolidated Governmental Budget. Upon completion of the budget, the Governor shall present said budget to the full Legislature for consideration and passage.

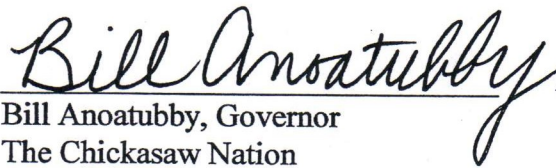
DE. The legislature, with advisement from the comptroller, shall be responsible for

proposing legislation to adopt the budget. Any rejection, amendment or alteration of that budget shall be based upon material changes in real or estimated revenues, in surplus funds, reserves and/or in expenditures that affect the total amounts budgeted. Any amendments provided for in this section shall be presented to the full legislature for consideration and passage, and shall not be effective until signed by the Governor."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 16, 2004, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: April 21, 2004
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution amends Section 18-110 of the code by deleting one subsection which defines and delineates what was once termed the "Capital Improvements Plan." A new subsection is added to Section 10-202 which defines and delineates a Development Budget, which will take the place of the Capital Improvements Plan, and will be included in the portion of the Code which deals with the tribe's budget process. The amendments include details as to what is required for reporting to the Legislature on all projects involving capital improvements and provides for monthly reporting from the Governor to the Legislature on financial expenditures for all such projects.

Requested By: Governor Bill Anoatubby

Presented By: Steve Woods, Chairman
Legislative Committee